

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #11	CCRB Case #: 201603609	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 04/15/2016 9:40 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/15/2017	Precinct: 49
Date/Time CV Reported Wed, 04/20/2016 11:10 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/28/2016 10:53 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Steven Brown	07853	938122	049 PCT
2. POM Efrain Vazquez	05697	937682	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Efrain Vazquez	Discourtesy: Police Officer Efrain Vazquez spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Efrain Vazquez	Abuse: Police Officer Efrain Vazquez threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . POM Efrain Vazquez	Abuse: Police Officer Efrain Vazquez refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated
D . POM Steven Brown	Abuse: Police Officer Steven Brown refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated

Case Summary

On April 20, 2016, § 87(2)(b) called the IAB Command Center to file this complaint, which was received at the CCRB on April 28, 2016.

On April 15, 2016, at approximately 9:22AM, § 87(2)(b) called 911 and reported that his neighbor threatened to shoot him. PO Efrain Vasquez and PO Steven Brown, both from the 49th Precinct, arrived to § 87(2)(b)'s apartment, located at § 87(2)(b) in the Bronx, and spoke with him. They then walked to § 87(2)(b)'s neighbor's apartment.

When the officers returned to § 87(2)(b)'s apartment, they informed him that there was no cause to arrest his neighbor. § 87(2)(b) verbally argued with the officers and PO Vasquez allegedly told him to "shut the fuck up" (**Allegation A**) and said "I'll lock you up" (**Allegation B**). § 87(2)(b) called 911 again and requested that a supervisor respond to the location because the officers were taking sides. PO Vasquez and PO Brown requested an ambulance to the location.

§ 87(2)(b) and § 87(2)(b) arrived to transport § 87(2)(b) to the hospital. As § 87(2)(b) walked to the ambulance, he asked PO Vasquez and PO Brown for their names and shield numbers, but the officers allegedly refused to provide the requested information (**Allegations C and D**). § 87(2)(b) was transported to § 87(2)(b), but he left without being treated. No arrest or summons resulted from this incident.

There is no video evidence in this case.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of May 24, 2016, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's Office regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 03).
- PO Vasquez, an 11 year member-of-service, has two prior CCRB complaints filed against him with a total of three allegations, none of which have been substantiated. Of the allegations that were fully investigated, all three were unsubstantiated.
- PO Brown, an 11 year member-of-service, has four prior CCRB complaints filed against him with a total of six allegations, none of which have been substantiated. Of the allegations that were fully investigated, three were unsubstantiated, two were unfounded, and one was exonerated.

Allegations Not Pled

- § 87(2)(g)
- § 87(2)(g)

Findings and Recommendations

Allegation A -Discourtesy: Police Officer Efrain Vasquez spoke discourteously to § 87(2)(b)

Allegation B -Abuse: Police Officer Efrain Vasquez threatened to arrest § 87(2)(b)

It is undisputed that after PO Vasquez and PO Brown spoke with § 87(2)(b)'s neighbor, they informed § 87(2)(b) that his neighbor would not be arrested and that § 87(2)(b) verbally argued with the officers about this.

§ 87(2)(b) (Board Review 04) testified that during the course of an approximately 15-minute argument, PO Vasquez yelled at § 87(2)(b) "Shut the fuck up. I'll arrest you right now for disorderly conduct. There's people that live here and you're yelling." § 87(2)(b) replied that they were inside of his apartment and that he could yell there.

PO Vasquez (Board Review 05) testified that while the officers spoke to § 87(2)(b)'s neighbor, § 87(2)(b) ran through the hallway, screaming and looking for the building superintendent. PO Vasquez acknowledged telling § 87(2)(b) to lower his voice, but denied saying "shut the fuck up" and denied threatening to arrest him for disorderly conduct or any other crime or violation. § 87(2)(b) continued acting erratically, so PO Vasquez and PO Brown requested an ambulance to transport § 87(2)(b) to the hospital for a psychiatric evaluation.

PO Brown's testimony (Board Review 06) § 87(2)(g) He denied hearing PO Vasquez speak discourteously or threaten to arrest § 87(2)(b) for disorderly conduct, although he acknowledged that when § 87(2)(b) alluded to doing "something" to his neighbor, PO Brown informed him that he would be arrested if he harmed his neighbor. PO Brown believed § 87(2)(b) was implying that he may harm his neighbor.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C -Discourtesy: Police Officer Efrain Vasquez refused to provide his name and shield number to § 87(2)(b)

Allegation D -Discourtesy: Police Officer Steven Brown refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) testified that after the ambulance arrived and as he was being escorted from his apartment, he asked PO Vasquez and PO Brown for their names and shield numbers and alleged that they failed to provide the requested information or otherwise acknowledge his request. He said that § 87(2)(b) identified via investigation, told him he could obtain the officers' information later, but he never did.

EMT § 87(2)(b) (Board Review 07) did not recall this incident, but § 87(2)(b) (Board Review 08), identified via investigation, recalled § 87(2)(b) being angry with his neighbor, as well as PO Vasquez and PO Brown having limited interactions with § 87(2)(b) which included no more than encouraging him to leave with the EMTs. EMT § 87(2)(b) did not recall § 87(2)(b) asking the officers for their names or shield numbers or the officers refusing to provide this information.

PO Vasquez did not recall § 87(2)(b) requesting his or PO Brown's name and shield number, and PO Brown denied that § 87(2)(b) ever requested this information from either officer.

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **unsubstantiated**.

Squad: 11

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date